

24VECV04473 24VECV04473

County: los-angeles
Division: Civil Law and Motion
Department: O
Hearing date: 2026-06-26
Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C06%2F26%2F2026
Source SHA-256: 2867d615b72c1eef21f756f22ec1b343ea68ef8e937e345d97bf4a1fa677c2d6

Case Number: 24VECV04473 Hearing Date: June 26, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

FELIPE ARGUETA,

Plaintiff,

vs.

BODEGA
LATINA CORPORATION DBA EL SUPER; CHEDRAUI, USA, INC.; and DOES 1-50,
inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24VECV04473

ORDER

DENYING DEFENDANT CHEDRAUI USA, INC.'S MOTION TO COMPEL PLAINTIFF'S
INDEPENDENT NEUROLOGICAL MEDICAL EXAMINATION

I.

BACKGROUND

This is a personal injury action
arising from a slip-and-fall incident on December 29, 2023.

II.

PROCEDURAL

HISTORY

On September 18, 2024,
Felipe Argueta ("Plaintiff") filed a complaint against Bodega Latina
Corporation dba El Super and Chedraui USA ("Chedraui") (collectively,
"Defendants") alleging negligence and premise liability.

On October 23, 2024,
Chedraui filed its Answer.

On November 25, 2025,
the Court denied Chedraui's Motion for Summary Judgment.

On April 27, 2026,
Chedraui filed the instant Motion to Compel Plaintiff's independent
neurological medical examination.

On May 1, 2026,
Plaintiff filed an Opposition.

On May 27, 2026,
Chedraui filed a Reply.

On June 12, 2026, Chedraui
filed Supplemental Briefing with leave of Court.

On June 18, 2026, Plaintiff
filed Supplemental Briefing with leave of Court.

III.

LEGAL

STANDARD

Every defendant in a personal injury case is entitled to take
one physical examination of the plaintiff without leave of court. (See Code Civ.
Proc. § 2032.220.)[1] If a defendant in a personal injury action wishes to
take additional physical examinations or a mental examination of the
plaintiff, and the plaintiff will not stipulate to the same, the defendant
must bring a motion for leave to compel the requested examination. (See
Code Civ. Proc. § 2032.310.) Such a motion should be
granted only for good cause shown. (See Code Civ. Proc. §
2032.320 (a); see also *Vinson v. Superior Court* (1987)
43 Cal.3d 833, 840.) Such a motion must "specify the time, place, manner,
conditions, scope, and nature of the examination, as well as the identity and
the specialty, if any, of the person or persons who will perform the
examination." (Code Civ. Proc. § 2032.310(b); see *Carpenter v. Superior
Court* (2006) 141 Cal.App.4th 249, 260-262.) Moreover,
"[t]he motion shall be accompanied by a meet and confer declaration
under Section 2016.040." (Code Civ. Proc. § 2032.310 (b).)

A showing of "good cause" requires the moving party produce
specific facts justifying discovery and that the inquiry be relevant to the

subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (See *Vinson*, supra, 43 Cal.3d at 840.) The purpose is to protect an examinee's privacy by preventing annoying "fishing expeditions." (Id.) Where plaintiff's injuries are complex, several exams may be necessary by specialists in different fields. (See *Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1255.) There is no limit on the number of physical or mental exams that may be ordered on a showing of good cause. (See id.) The good cause requirement checks any potential harassment of plaintiff. (See id.)

Code of Civil Procedure § 2032.310 (b) provides: "A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." Moreover, pursuant to Section 2032.320(d), the specific diagnostic tests to be performed must be explicitly identified in the court's order and include the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (See *Carpenter v. Sup. Ct.* (2006) 141 Cal.App.4th 249, 260-262.)

To comply with § 2032.320, the Court's order must be able to set forth the names of the tests, and any names provided must have "so precise and finite a meaning in the mental health profession as to be the functional equivalent of a list of specific tests." (Id., 141 Cal.App.4th at 269.)

IV.

MEET

AND CONFER

On April 8, 2026, the parties met and conferred over the phone regarding the pertinent issues of this motion. (See Declaration of Andrew Kosch filed April 27, 2026 ("Kosch Decl."), ¶ 8.)

V.

ANALYSIS

Chedraui now moves to compel a neurophysiological examination of Plaintiff with Daniel Franc, M.D., PhD, QME

on June 22, 2026, at 11620 Wilshire Blvd. Suite 340, Los Angeles, CA 90025.

Chedraui submits that Plaintiff

indicated on supplemental discovery responses served on April 2, 2026, that he underwent a three-level cervical neurolytic procedure (rhizotomy) and has been diagnosed with a permanent neurological pathology: post trauma cervical myeloradiculopathy and Plaintiff reports still experiencing a 7/10 pain level.

(See Kosch Decl., ¶ 6, Exh. 3.) Chedraui argues Dr. Sonu Ahluwalia, who performed the first Defense medical examination, is an orthopedic surgeon who deals with musculoskeletal issues and Plaintiff's recent procedures fall within the domain of neurology, thus a second examination by neurologist, Dr. Franc, is necessary. (See Mot. 4:8-10.)

Plaintiff argues Chedraui does not have

good cause because Plaintiff has already undergone a Defense medical examination in which Dr. Ahluwalia conducted a neurological assessment of Plaintiff. (Opp. 4-5:26-3, Ex. H.) In support, Plaintiff argues his condition is not new because he has complained of neck and back pain since the onset of this case. Plaintiff also states the subsequent rhizotomy is a medical treatment directed at the same underlying pathology and is not a new injury.

The Court finds Chedraui has

established good cause to warrant granting the motion and compelling Plaintiff to submit to a neurophysiological examination. As indicated by Plaintiff's supplemental discovery responses, he underwent a medical procedure related to the upper-back pain he has been experiencing. This procedure occurred after Plaintiff underwent the first IME on June 18, 2025, thus Chedraui's expert did not have the opportunity to evaluate Plaintiff's condition following the procedure. Even if Chedraui did have enough information to know it needed to conduct a neurological examination, Dr. Ahluwalia's area of expertise would not enable him to do one.

At the June 3, 2026, hearing the Court

requested supplemental briefing for the parties to address whether Plaintiff's second IME must be conducted by a neurologist. (See June 3, 2026 Minute Order.)

Defendant contends Dr. Ahluwalia, an orthopedist,

specializes in musculoskeletal mechanics. (See Supp. Mot. at 3:14-21.) Plaintiff's injuries prior to his rhizotomy fell under Dr. Ahluwalia's purview as he claimed musculoskeletal neck and back strains. (See *id.*, at 4:1-3.)

Defendant contends that neurologist Dr. Franc focuses on the nervous system and transmission of neural pathways. (See *id.*, at 3:22-27.) Defendant argues because Plaintiff's rhizotomy involved destruction of nerve tissue, a subsequent diagnosis of central nervous system spinal cord compression (myeloradiculopathy), and ongoing pain, these injuries require examination by a neurologist, as opposed to a specialist in orthopedics. (See *id.*, at 4:26-5:2.)

Plaintiff argues Defendant does not present any evidence Dr. Ahluwalia cannot evaluate Plaintiff's neurological injuries, aside from his counsel's declaration. (See Supp. Opp. at 2:8-11.) Plaintiff points out no declaration by Dr. Ahluwalia attesting that he lacks the qualifications to perform the neurological exam was submitted. (See *id.* at 2:21.) Plaintiff argues Dr. Ahluwalia's curriculum vitae shows he is "highly specialized in spine and orthopaedic sports medicine" but Defendant does not explain why he is unqualified to perform the requested exam. (See *id.*, at 3:17-21.) Plaintiff further argues his subsequent treatment is not a new injury justifying a neurological exam. (See *id.*, at 4:1-8.)

The Court does not change its finding that good cause exists here for a second medical exam as Plaintiff's condition materially altered since the initial examination. Specifically, Plaintiff received rhizotomy treatment, which involves surgical nerve ablation, but continues to experience level 7/10 pain, and was diagnosed with post trauma cervical myeloradiculopathy (spinal cord compression). As stated above, Dr. Ahluwalia's neurological examination did not evaluate Plaintiff's condition post rhizotomy treatment. Because there have been material updates in Plaintiff's condition there exists good cause for a second IME.

Additionally, the Court notes the absence of any declaration provided by Dr. Ahluwalia or Dr. Franc explaining why a neurologist is required to examine these conditions. However, the Court agrees with Plaintiff that Defendant has not shown why Dr. Ahluwalia cannot perform the neurological exam given that he performed a neurological examination during Plaintiff's initial IME. There is no declaration provided by Dr. Ahluwalia attesting that he is unable to examine Plaintiff's condition following his rhizotomy treatment. Defendant also does not show Dr. Ahluwalia would be unable to conduct the same types of examinations Dr. Franc would conduct, such that a neurologist would be necessary to conduct the second IME.

(See Code of Civ. Proc. § 2032.310(b).)

Based on the foregoing, the Court DENIES
Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's Independent
Neurological Medical Examination with Dr. Daniel Franc.

VI.

CONCLUSION

Based on the foregoing, the Court DENIES
Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's Independent Neurological
Medical Examination.

DATED: June 26, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California authority unless stated otherwise.